

complaint

Mr S complains that Aviva Insurance Limited will not pay to repair his car following an accident under his motor policy. He wants it to meet his claim and also pay him compensation for the stress and inconvenience caused by its refusal.

background

Another car ran into the back of Mr S's car at low speed. Initially there did not seem to be any significant damage, but subsequently Mr S identified that there was some damage to the boot scuttle panel and to the folding roof. He therefore made a claim to Aviva.

Aviva rejected the claim, saying that the damage was not accident related and appeared to be linked to a previous replacement of the roof, when incorrect screws had been fitted. The garage that carried out this work strongly denies that it fitted the wrong screws.

Our adjudicator initially recommended that the complaint should be upheld. He noted that two engineers' reports produced for Aviva concluded that the damage was not caused in the accident, but evidence from one of those engineers that the roof was fitted and working correctly persuaded him that faulty installation of the roof was not the cause of the damage.

Aviva did not accept the adjudicator's initial conclusions. It said, in summary, that five engineers had come to the same view that the damage was not accident related, and it was not for Aviva to prove how the damage was otherwise caused.

The adjudicator then issued a second assessment of this complaint, in which he did not recommend that it should be upheld. He was persuaded by Aviva's further evidence and in particular the report of an independent engineer, that the damage to the roof was not accident related. He said he would re-consider his assessment if Mr S provided his own independent engineer's report showing that the damage was accident related.

Mr S does not accept the adjudicator's revised conclusions. He accepts that the damage to the roof appears disproportionate to the relatively low impact, but still says that the damage was not there before the accident occurred. He is also dissatisfied that Aviva did not do more to pursue his claim with the other driver's insurer.

my findings

I have considered all the available evidence and arguments to decide what is fair and reasonable in the circumstances of this complaint.

I find that it is for Aviva to prove that the roof damage was not caused by the accident, but I do not consider that it has to prove how else the damage was caused.

Having considered all the engineers' reports and particularly that of the independent engineer, I am satisfied that Aviva has shown that the damage could not have been caused in the accident. The speed of impact was low and there is no other significant damage reported on Mr S's car – which I would have expected to see if the roof damage was caused at the same time. I appreciate that the garage that fitted the roof is adamant that it is not responsible for any damage, but it is not for me to decide whether it was or not.

I am satisfied that Aviva did give Mr S's claim fair and reasonable consideration before deciding to reject it, and I have no reason for requiring it to change its decision. I am also satisfied that, having decided to reject Mr S's claim, it did not need to do anything further to pursue a claim against the other driver.

my final decision

For the reasons given above, my decision is that I do not uphold this complaint against Aviva Insurance Limited.

Under the rules of the Financial Ombudsman Service, I am required to ask Mr S to accept or reject my decision before 30 December 2014.

Malcolm Rogers
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